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## JOYRIDER INDEPENDENT CONTRACTOR AGREEMENT

**Wrrapd, Inc.** -- Gift Wrapping Network · JoyRider App

**Scope note:** Under this Agreement, JoyRiders provide **logistics and final-mile delivery** via the **JoyRider App**. Gift wrapping is **not** a JoyRider duty.

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This JoyRider Independent Contractor Agreement (the "**Agreement**") is entered into by and between **Wrrapd, Inc.**, a company doing business as Wrrapd, with notice and legal address at **7901 4th Street N, Ste. 300, St. Petersburg, FL 33702-4399** ("**Wrrapd**" or the "**Company**"), and the undersigned individual or business entity ("**Contractor**" or "**JoyRider**"). Wrrapd and Contractor are each a "**Party**" and together the "**Parties**."

By signing, Contractor acknowledges that Contractor has read, understands, and agrees to be bound by this Agreement and by the concurrently executed Mutual Arbitration Agreement, Background Check and Motor Vehicle Record Authorization, JoyRider Code of Conduct and Safety Guidelines, and Third-Party Litigation Funding Disclosure (collectively, the "**Companion Documents**"), and by the then-current **Compensation Schedule**.

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### 1. Purpose and Relationship

1.1 Wrrapd operates a technology platform that arranges professional gift wrapping and delivery. Contractor provides **courier and logistics Services**--including inbound package collection, transfers to and from wrapping locations, floral pickup when assigned, barcode scanning, and final-mile delivery--(the "**Services**") as an independent contractor using the dedicated **JoyRider mobile application** (the "**JoyRider App**") and related tools (collectively, the "**Platform**").

1.2 The JoyRider App is a contractor-facing application that is **separate from** any consumer-facing Wrrapd application. Gift wrapping is performed by persons Wrrapd assigns under a separate arrangement and is outside the Services.

1.3 Nothing in this Agreement creates an employment, partnership, joint venture, or general agency relationship. Contractor is not authorized to bind Wrrapd or to represent that Contractor is an employee of Wrrapd.

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### 2. Independent Contractor Status

2.1 Contractor is and shall remain an **independent contractor**. Contractor is solely responsible for all federal, state, and local taxes, withholdings, and filings arising from compensation under this Agreement. Wrrapd will issue IRS Form **1099-NEC** (or successor) as required by law.

2.2 Contractor shall provide, at Contractor's own expense, a compatible smartphone capable of running the JoyRider App, internet access, fuel, and an eligible, legally operated vehicle with insurance required by law to drive. Wrrapd does **not** require Contractor to purchase commercial general liability or cargo insurance beyond legally required automobile insurance, unless a future written amendment states otherwise. Coverage from DoorDash, Uber, Spark, Shipt, or any other gig platform applies only to that platform's trips and **does not cover** Wrrapd Services. Contractor shall not rely on that coverage for a Wrrapd hop.

2.3 Subject to Platform rules and published safety, scan, proof, and timing standards, Contractor controls the manner and means of performing the Services, including route choices within App instructions.

2.4 Contractor may accept or decline work windows as the JoyRider App permits, may provide similar services to others, and is not guaranteed any minimum hours, volume, or income.

2.5 Contractor shall not subcontract, assign, or delegate performance of the Services without Wrrapd's prior written consent.

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### 3. Eligibility; Capacity; Representations

3.1 Contractor represents and warrants that: (a) if an individual, Contractor is at least **twenty-one (21)** years of age; (b) Contractor holds a valid U.S. driver's license and is legally authorized to drive and to work in the United States in the areas where Contractor operates; (c) Contractor will maintain vehicle insurance required by applicable law; (d) if an entity, the person signing has full authority to bind the entity; (e) all application, W-9, license, driving-abstract, and onboarding information is true and complete; and (f) Contractor is not subject to any agreement that would conflict with this Agreement.

3.2 Contractor shall promptly update Wrrapd if any representation in this Section 3 becomes inaccurate (including license suspension or insurance lapse).

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### 4. Scope of Services (Logistics Only)

4.1 Contractor's role is **pickup, transfer, floral pickup when assigned, barcode scan, and delivery**. Contractor does **not** wrap gifts and shall not open a finished wrap to read a packing slip.

4.2 As assigned in the JoyRider App, Contractor agrees to:

**(a) Inbound pickup.** Collect retailer or Company packages from a nearby Wrrapd location (including a PO Box, hub, or other address Wrrapd designates);

**(b) Drop at wrapping location.** Deliver those packages to the wrapping location and person Wrrapd assigns during the agreed handoff window;

**(c) Flowers and finished wraps.** When an order requires flowers, obtain them as the App instructs; collect finished wrapped gifts from the wrapping location;

**(d) Completeness scan.** Before leaving for the giftee, scan the barcode on **each** expected wrap unit (and any flower-only label). The App will show progress (for example, 2 of 3 gifts plus flowers) and, after a valid scan, the delivery address and whether flowers accompany that gift. Contractor shall not mark en-route until every expected

code for that stop is scanned;

**(e) Final delivery.** Deliver gifts and/or flowers to the giftee, scan again at the door as the App requires, and capture any required delivery proof (for example, a photo); and

**(f) Care.** Exercise reasonable care as a bailee from pickup until delivery or return to a Wrrapd location.

4.3 Contractor shall not contact customers or giftees except as the JoyRider App requires for a delivery attempt (for example, a brief arrival or access message).

4.4 Contractor shall not video-record handoffs at a wrapping location unless the Platform expressly requests a specific proof format for a particular exception; routine chain-of-custody uses App status and scans.

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## 5. Custody of Goods; Care of Merchandise

5.1 While goods are in Contractor's possession, custody, or control, Contractor shall exercise **reasonable care** as a bailee for the benefit of Wrrapd and its customers.

5.2 Contractor is responsible for loss, theft, damage, misdelivery, or unauthorized use of goods to the extent caused by Contractor's **negligence, willful misconduct, unauthorized use, or failure to exercise reasonable care.**

Contractor is **not** responsible for damage that existed before pickup and that Contractor timely reported, or for loss after confirmed delivery per Platform rules, or for loss caused by Wrrapd's gross negligence or willful misconduct.

5.3 Contractor shall not use, consume, gift, sell, or appropriate customer merchandise or flowers for personal purposes, and shall not leave goods unsecured.

5.4 Title to customer merchandise does not pass to Contractor.

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### 5A. Refusal, Detention, and Demand-for-Return

5A.1 **Duty to perform or release.** If Contractor accepts a load and then will not deliver it, will not complete required scans, or will not return undelivered goods, Contractor shall say so in the JoyRider App **immediately** and shall make every item available for pickup by the person Wrrapd assigns within **two (2) hours** of that notice (or the shorter window then published in the App).

5A.2 **No lien.** Contractor has **no right** to hold, detain, hide, or condition the return of goods for unpaid compensation or any other claim against Wrrapd.

5A.3 **Demand.** Wrrapd may demand return of any goods at any time. Contractor shall stage the goods at a location Wrrapd designates (vehicle curb, wrapping entrance, or Wrrapd hub). Failure to make the goods available by the stated deadline is **conversion** and unauthorized detention. Wrrapd may report the matter to law enforcement, withhold or claw back pay, charge replacement cost of goods plus makeup delivery, and terminate immediately.

5A.4 **Access.** Contractor has no right to enter a giftee's home. Delivery is at the door or as the App instructs. Contractor has no right to require anyone to enter Contractor's vehicle or home to retrieve detained goods -- Contractor must stage them.

5A.5 This Section 5A is a material term. Breach is grounds for immediate suspension and termination, in addition to any civil or criminal remedies.

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## 6. Delivery Proof and Scan Integrity (Non-Negotiable)

6.1 Contractor shall complete barcode scans and upload delivery proof in the format(s) required by the JoyRider App. Failed or fabricated scans or proof, or scanning the wrong gift to conceal a miss, may result in non-payment, clawback, suspension, and/or termination. A scan that does not match the current route shall be treated as a wrong gift -- Contractor shall check the label and not proceed on that stop.

6.2 Contractor is **not** required to livestream wrapping. Delivery proof is scan plus photo (or other format the App publishes).

6.3 Contractor grants Wrrapd a perpetual, worldwide, royalty-free license to use proof media for quality assurance, customer support, dispute resolution, claims handling, training, legal compliance, and Platform operation.

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## 7. JoyRider App and Platform

7.1 **License.** Subject to this Agreement, Wrrapd grants Contractor a limited, non-exclusive, non-transferable, revocable license to download, install, and use the JoyRider App and related Platform tools solely to perform the Services. The JoyRider App is licensed, not sold.

7.2 **Account and credentials.** Contractor shall maintain only one JoyRider App account (unless Wrrapd approves otherwise), keep credentials confidential, not share the account, and promptly notify Wrrapd of unauthorized access.

7.3 **Device and permissions.** Contractor shall use a compatible smartphone and grant permissions reasonably needed for the Services (camera for scans and proof, notifications, and location while performing assigned logistics windows, as published in the App).

7.4 **Workflow.** Work windows, navigation aids, scans, status updates, earnings views, and contractor communications will primarily occur in the JoyRider App. Contractor shall keep notifications reasonably enabled while available for work.

7.4A **Wrrapd dispatch only.** Contractor shall perform the Services only through the JoyRider App. Contractor shall not accept, dispatch, or complete Wrrapd work through DoorDash, Uber, Spark, Shipt, Instacart, or any other third-party gig platform.

7.5 **Updates; availability.** Wrrapd may update or suspend App features. The JoyRider App is provided "as available." Temporary outages do not by themselves constitute breach if Wrrapd uses commercially reasonable efforts to restore service.

7.6 **Prohibited App conduct.** Contractor shall not reverse engineer the App (except as law prohibits such restriction), interfere with security, use bots or unauthorized automation, or upload malware or unlawful content.

7.7 **App data.** Data collected through the JoyRider App may be used by Wrrapd to operate the Platform, assign and fulfill work, pay Contractor, ensure safety and quality, prevent fraud, comply with law, and improve the Services,

consistent with applicable law and any published contractor privacy notice.

**7.8 End of access.** Upon termination or request, Contractor shall cease use of the JoyRider App, delete local Confidential Information where feasible, and return Wrrapd property (including unused labels and any goods in custody).

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## 8. Compensation

8.1 Contractor is paid an **hourly rate**, not a per-order piece rate. The rate is determined by the **Compensation Schedule** then published in Command Center / the JoyRider App, which may vary by **ZIP code** (exact ZIP or 3-digit prefix) or use the JoyRider default.

8.2 Hours accrue for accepted windows actually worked, as recorded in the JoyRider App, with a **minimum of one (1) hour** for each accepted window actually commenced. Wrrapd does not guarantee volume. A wrapping-pace rule does **not** apply to JoyRiders.

8.3 **Incentive compensation.** From time to time -- particularly during higher-demand periods -- Wrrapd may offer **discretionary incentive or bonus compensation** (for example, peak-period or completion bonuses) as published in the Compensation Schedule, Command Center, or JoyRider App. Incentive terms apply only for the periods stated and create no ongoing entitlement afterward.

8.4 Tips, if ever enabled for JoyRiders, follow the then-current Compensation Schedule.

8.5 Wrrapd may withhold, offset, or claw back compensation for fraud, failed or fabricated proof, failed scans used to conceal a miss, chargebacks, negligence under Section 5 or 5A, overpayments, no-show costs under Section 16A, or other amounts Contractor owes Wrrapd.

8.6 Contractor shall complete Form W-9 (or equivalent) before payouts. Material changes to compensation methodology will be communicated via the JoyRider App or email and apply prospectively.

## 9. Background Checks and Onboarding

9.1 As a condition of engagement and continued access to the JoyRider App, Contractor agrees to complete required onboarding, including tax forms, identity and license verification, upload of an official **driving record / abstract**, orientation, vehicle insurance confirmation, and the separate **Background Check and Motor Vehicle Record Authorization**.

9.2 Wrrapd may condition activation or continued engagement on satisfactory screening results consistent with applicable law.

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## 10. Vehicle, License, and Safety

10.1 Contractor shall maintain a valid driver's license, an eligible vehicle, and legally required automobile insurance, and shall provide proof upon request. License suspension or required-insurance lapse is grounds for immediate deactivation.

10.2 Contractor shall drive lawfully and safely, shall not drive while impaired, and shall follow published JoyRider safety standards.

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## 11. Indemnification

11.1 Contractor shall indemnify, defend, and hold harmless Wrrapd and its officers, directors, members, managers, employees, agents, and affiliates from and against any claims, damages, losses, liabilities, penalties, and expenses (including reasonable attorneys' fees) arising out of or relating to: (a) Contractor's negligence or willful misconduct in performing the Services or using the JoyRider App; (b) loss, theft, damage, misdelivery, or unauthorized use of goods to the extent Contractor is responsible under Section 5 or 5A; (c) injury to persons or property caused by Contractor (including while driving); (d) Contractor's breach of law or this Agreement; (e) Contractor's misuse of personal data, Confidential Information, or the JoyRider App; or (f) any claim that Contractor is an employee of Wrrapd to the extent based on Contractor's acts or omissions--except to the extent caused by Wrrapd's gross negligence or willful misconduct.

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## 12. Confidentiality; Non-Disclosure; Data Protection

12.1 **Confidential Information** includes all non-public information Contractor obtains in connection with the Services, Platform, or JoyRider App, including without limitation:

**(a) Customer and recipient data** -- names, addresses, phone numbers, email addresses, access codes, and other personal information; **(b) Gift and order data** -- gift identity, barcode payloads, flower pairing, order references, delivery instructions, and proof media; **(c) Logistics and location data** -- PO Box / hub addresses designated by Wrrapd, wrapping locations and handoff windows, route information, and scan results; **(d) Wrrapd business and technical information** -- business models, pricing and Compensation Schedules (except for Contractor's own tax records), allocation methods, operational playbooks, trade secrets, techniques, methods, systems, JoyRider App architecture, security controls, credentials, and non-public partner terms; and **(e) Derivatives** of any of the foregoing.

Exclusions for publicly available information, prior rightful possession, and independent development apply as under customary confidentiality practice, provided Contractor does not itself cause public disclosure.

12.2 Contractor shall not disclose Confidential Information to any third party except to Wrrapd personnel with a need to know, to professional advisors under confidentiality for tax/legal advice, or as required by law with prompt notice to Wrrapd where legally permitted.

12.3 Contractor shall use Confidential Information **solely** to complete assigned stops. Contractor shall not scrape or bulk-export data, use Confidential Information to compete with Wrrapd, reverse engineer the App beyond ordinary use, or retain recipient addresses after delivery longer than needed for the stop (except tax records subject to this Section 12).

12.4 Contractor shall protect Confidential Information with reasonable care, notify Wrrapd within twenty-four (24) hours of any suspected breach, and upon termination return or delete Confidential Information (except proof already uploaded to Wrrapd).

12.5 Unauthorized disclosure may cause irreparable harm. Wrrapd may seek injunctive relief in Duval County, Florida, as provided in the Mutual Arbitration Agreement, without waiving arbitration of damages claims.

12.6 This Section 12 survives termination **indefinitely** as to trade secrets and customer/gift/recipient data, and for no less than **five (5) years** as to other Confidential Information.

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### 13. Intellectual Property

13.1 Wrrapd owns the Platform, JoyRider App, trademarks, and related materials. Contractor grants Wrrapd the license in Section 6.3 as to proof media. Contractor shall not use Wrrapd marks except as authorized to perform the Services.

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### 14. Non-Circumvention

14.1 During the term and for **six (6)** months thereafter, Contractor shall not knowingly use recipient or wrapping-location information obtained through the Platform to solicit delivery or logistics work that bypasses Wrrapd for engagements that originated on the Platform.

14.2 This Section does not prohibit unrelated services for persons who independently contact Contractor without Platform-sourced information.

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### 15. Brand Standards; Policies

15.1 Contractor shall follow the JoyRider Code of Conduct and Safety Guidelines and published Platform standards. Wrrapd may suspend or deactivate App access for material breach, safety issues, failed scans or proof, screening issues, or ratings below published thresholds.

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### 16. Communications; Response Time

While Contractor has active or accepted windows, or has indicated availability in the JoyRider App, Contractor shall monitor and respond to Wrrapd communications (in-App, email, or SMS as consented) within twenty-four (24) hours, or sooner if a live stop so requires.

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### 16A. Weekly Availability; Unavailability; Cancellation; Return of Goods

16A.1 **Weekly availability (required).** Contractor shall submit Contractor's availability for the **following calendar week** (Monday through Sunday) through the JoyRider App **no later than Friday at 6:00 p.m. Eastern Time** of the week before that work week. Availability is used to allocate logistics and delivery work. Failure to submit by the deadline may result in Contractor being treated as **unavailable** for that week (unless Wrrapd overrides in Command Center), with no guaranteed hours.

16A.2 **Immediate notice -- illness, bereavement, emergency.** If Contractor cannot work an accepted delivery window, or any portion of a submitted available day, because of sudden illness, bereavement, emergency, or any other unforeseen cause, Contractor shall notify Wrrapd **immediately** through the JoyRider App (or the



then-published emergency contact channel) -- and in any event **as soon as Contractor knows**, and **no later than four (4) hours before** the published start of the affected window. Silence is a material breach.

**16A.3 Return of deliverable materials.** Upon any such notice (or upon Wrrapd's demand), Contractor shall make **all** packages, wrapped gifts, flowers, labels, and related deliverable materials in Contractor's possession or vehicle available for pickup by a **backup JoyRider or other person Wrrapd assigns** within **two (2) hours** (or the shorter window then published), consistent with Section 5A. Contractor shall not detain goods.

**16A.4 Personal liability for delay or detention.** If Contractor fails to give immediate notice under Section 16A.2, fails to return or stage goods under Section 16A.3 / Section 5A, or otherwise causes delay, missed customer promises, or reassignment cost: (a) the missed window is unpaid; (b) Wrrapd may withhold, offset, or claw back compensation and recover reasonable last-minute reassignment, replacement, and makeup-delivery costs from amounts otherwise owed to Contractor; (c) Contractor remains personally responsible under Sections 5 and 5A for loss, damage, misdelivery, or detention of goods; and (d) repeated late cancels or no-shows are grounds for immediate termination.

**16A.5** Illness, bereavement, or emergency does **not** excuse the notice or return duties in this Section 16A. Wrrapd's use of backup contractors is an operations matter and does not create a right to keep goods or to be paid for a missed window.

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## 17. Term and Termination

17.1 This Agreement begins on Contractor's signature (or electronic acceptance) and continues until terminated.

17.2 Either Party may terminate at any time, with or without cause, by written, in-App, or Platform notice. Wrrapd may suspend access immediately for material breach, safety concerns, suspected fraud, license/insurance issues, or legal compliance reasons.

17.3 Upon termination, Contractor shall complete or safely return goods in custody as Wrrapd directs (including under Section 5A), cease App use, and cooperate in wind-down. Sections 5, 5A, 6.3, 7.7, 8.5, 11, 12, 13, 14, 16A, 18, 19, and 20 survive termination.

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## 18. Dispute Resolution; Governing Law

18.1 Any dispute arising out of or relating to this Agreement, the Companion Documents, the JoyRider App, compensation, termination, or Contractor's relationship with Wrrapd shall be resolved exclusively under the separate **Mutual Arbitration Agreement** executed concurrently herewith.

18.2 This Agreement is governed by the laws of the **State of Florida**, without regard to conflict-of-law principles that would require another jurisdiction's laws, except as the Federal Arbitration Act governs the Mutual Arbitration Agreement.

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## 19. Entire Agreement; Amendments; Severability



19.1 This Agreement, together with the Companion Documents and Compensation Schedule then in effect, constitutes the entire agreement regarding the Services and supersedes prior proposals relating thereto.

19.2 Wrrapd may update Platform policies and the Compensation Schedule prospectively. Core Agreement amendments require electronic acceptance or written agreement.

19.3 If any provision is held unenforceable, the remainder continues in effect. Contractor may not assign without Wrrapd's consent; Wrrapd may assign to an affiliate or successor.

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## 20. Electronic Acceptance; ESIGN

20.1 This Agreement and the Companion Documents are standard-form services agreements offered on a take-it-or-leave-it basis. They are not negotiated individually.

20.2 Applicant / Contractor accepts by electronic click-to-accept (for example, tapping or clicking **I Accept**) in the Wrrapd onboarding Platform, or by another electronic signature method Wrrapd provides. Acceptance under the federal Electronic Signatures in Global and National Commerce Act (ESIGN) and applicable state law has the same legal effect as a handwritten signature.

20.3 **No Company countersignature is required** on Contractor's individual packet. Wrrapd's assent is manifested by presenting this Agreement in the Platform and by activating Contractor's account / App access (or otherwise confirming engagement) after onboarding. Contractor's electronic acceptance is the final trigger that binds Contractor.

20.4 Continued use of the Platform or Apps after Wrrapd publishes an updated Agreement or Compensation Schedule (with notice via the App, email, or Platform) constitutes acceptance of the updated terms to the extent permitted by law, unless Contractor declines and ceases use as instructed.

20.5 Wrrapd may retain records of acceptance including typed name, timestamp, IP address, user agent, and packet version.